

TENTATIVE RULING

Case: **Shoman Auto Group v. Always Affordable Auto LLC**
Case No. CV2026-0845

Hearing Date: **June 17, 2026** **Department Thirteen** **9:00 a.m.**

Special motion to strike:

Defendants Always Affordable Auto, LLC and Ahmed Ishwait’s special motion to strike (anti-SLAPP) is **DENIED**. (Code Civ. Proc., § 425.16.) “Litigation of an anti-SLAPP motion involves a two-step process. First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009, internal citation and quotation marks omitted; Code Civ. Proc., § 425.16, subd. (b)(1).) “Second, for each claim that does arise from protected activity, the plaintiff must show the claim has at least minimal merit.” (*Bonni, supra*, 11 Cal.5th at p. 1009, internal quotation marks omitted.) The Court finds that defendant has not established that the challenged allegations in plaintiff Shoman Auto Group’s fourth cause of action for libel arise from protected activities. (*Ibid.*; Code Civ. Proc., § 425.16, subd. (e).) Therefore, the Court does not reach the second step regarding plaintiff’s probability of prevailing on the claim. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike portions of complaint:

Defendants’ motion to strike portions of complaint is **DENIED**. (Code Civ. Proc., § 435 et seq.; Civ. Code, § 3294.) Defendants fail to establish that plaintiff’s allegations are insufficient to support a request for punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042; Civ. Code, § 3294, subds. (a) & (c); see Complaint, ¶¶ 18-20 & 22.)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

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TENTATIVE RULING

Case: **Sunset Village v. McGinnis**
Case No. CV2026-1607

Hearing Date: **June 17, 2026** **Department Two** **2:00 p.m.**

Defendants Summer McGinnis and Robert Wesch's request for judicial notice is **GRANTED**. (Evid. Code, § 452, subds. (c), (h).)

Defendants' demurrer to plaintiff's complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to show, through matters on the face of the complaint or judicially noticeable, that plaintiff's complaint does not state facts sufficient to constitute a cause of action. (*Ibid.*; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see also *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Defendants have failed to show that the person named on the notice is a corporation. (*City of Alameda v. Sheehan* (2024) 105 Cal.App.5th 68, 81-82.)

As the Court is overruling defendants' demurrer, defendants' request to dismiss is **DENIED**. (Code Civ. Proc., § 581, subd. (f)(1).)

Defendants are ordered to file their answer by **June 22, 2026**. (Code Civ. Proc., §§ 586 subd. (a)(2), 1167.3.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.